SCHEDULE E-DEPART

DEPARTING LOAD - NONBYPASSABLE CHARGES T

APPLICABILITY

This schedule is applicable to all customers that have Departing Load as defined in Special Condition 1 and who are not otherwise exempt as set forth in Special Condition 3. T T

TERRITORY

Within the entire territory served.

RATES

Each billing period the Departing Load customer shall be billed the Nuclear Decommissioning (ND) charge, Public Purpose Programs (PPP) charge, and the Customer Generation Departing Load Cost Responsibility Surcharge (CGDL-CRS), as set forth in the customer's otherwise applicable rate schedule and Schedule CGDL-CRS. T T T N

SPECIAL CONDITIONS

1. **Departing Load**: Departing Load is that portion of the utility customer's electric load for which the customer, on or after December 20, 1995: (a) discontinues or reduces its purchases of electricity supply and delivery services from the utility; (b) purchases or consumes electricity supplied and delivered by sources other than the utility to replace such utility purchases; and (c) remains physically located at the same location or within the utility's service area as it existed. Reduction in load qualifies as Departing Load only to the extent that such load is subsequently served with electricity from a source other than the utility. T

2. **Bill Calculation**: The Departing Load customer's ND, PPP, and CGDL-CRS obligations will be based on metered consumption. If reliable metered consumption information is not made available to the utility, the utility will estimate the consumption based on that customer's historical load at the time the customer discontinues or reduces retail service with the utility, using one of the two following options: T T T

   (a) The customer's demand and energy usage over the 12-month period prior to the customer's submission of notice of its intention to take steps that will qualify the customer's load as Departing Load; or N

   (b) The customer's average 12-month demand and energy usage, with such average to be as measured over the prior 36-months of usage; or

   In the event the 12-month average usage differs from the 36-month average by an amount greater than 25 percent, the 36-month average will be used unless there is substantial evidence to demonstrate that the more recent usage is the result of a persisting change in the customer's electric usage, and that the 12-month average will be more indicative of the customer's future electric requirements. N

(Continued)

SCHEDULE E-DEPART

DEPARTING LOAD - NONBYPASSABLE CHARGES

SPECIAL CONDITIONS (Continued)

2. **Bill Calculation**: (Continued)

If the customer does not indicate its option in its advance notice to the utility of its intention to take steps that will qualify the customer's load as Departing Load, as set forth in Rule 23, the default method will be the customer's demand and energy usage over the 12-month period prior to the customer's submission of notice.

In circumstances where the Departing Load has been reduced following departure from the utility due to use of energy efficiency equipment or for other reasons, the customer and the utility may agree in writing to use metered or other data on a prospective basis to verify such load reduction for the Departing Load. If a metering agreement is reached, the utility will adjust the calculation of Departing Load payments.

If the customer has switched between applicable rate schedules or service voltages during the 36-month period prior to the date of departure, the Departing Load charges will be based on the customer's final applicable rate schedule and service voltage. Where a customer provides reliable third party metered consumption data, the rate schedules used for Departing Load purposes shall be consistent with that metered information.

3. **Exemptions**: A customer's Departing Load shall be exempt from billing of the ND, PPP and CGDL-CRS rates in the following situations, in addition to those specified in Rule 23 and Schedule CGDL-CRS:

(a) Departing Load customers who leave the utility's service to be served by an entity which must impose a PPP surcharge pursuant to Public Utilities Code Section 385 shall not thereafter be required to pay the PPP charge.

(b) Customers receiving service under one of SDG&E's Net Energy Metering (NEM) tariffs or Net Billing Tariff (NBT) are exempt from the Departing Load charges described in this schedule for power generated by the generator(s) making them eligible for NEM or NBT.

D